



SUPERIOR COURT OF SAN MATEO COUNTY

Probate - Probate

Courtroom 2C

Hearing Date: 09/11/2026 - 09:00 AM

09/02/2026

3:20 PM

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Judge: Novak, Lisa A.

Clerk: Ortega, Alexandrina

Reporter: Conde, Wendy

she owns two properties, which means she has to obviously expend time and travel attending to them. The Conservatee estate should not be expending any resources for Conservator's auto insurance, auto maintenance, gas, etc.

Life Insurance Policy: It is commendable that Conservator has taken out a life insurance policy naming Conservatee as its only beneficiary. That does not necessarily mean it is chargeable to the conservatee estate if it was done without court approval. The court would be willing to consider this as a legitimate cost, but petitioner would have to submit a complete copy of the policy in a supplement.

The Conservatorship bond is set at \$123,000.

Petition and the Review Hearing are CONTINUED to January 28, 2027 at 9:00 am for Petitioner to correct and/or provide additional information regarding these issues:

24-PRO-00447	IN THE MATTER RE: THE WILLIBALD J. SPITZ TRUST	Status RE: Settlement OR Trial Setting Conference- Continued from 07/09/26
Line 8	Petitioner: First-Citizens Bank etc. (LEE, JAMAY) Decedent: SPITZ, WILLIBALD Respondent: Spitz, Perry (DOWLING, DONALD J.)	Status Hearing

Tentative Ruling:

APPEARANCE ORDERED (Zoom allowed) [Related matters at lines 1 and 8]

Parties are ordered to appear for trial setting.

26-PRO-00324	Guardianship of Anderson Orlando De Leon Hernandez	Continued from 08/13/26 Continued from 08/13/26
Line 9, 10	Petitioner: De Leon Hernandez, Anderson Orlando (GARZON, MARCO) Ward: De Leon Hernandez, Anderson Orlando Proposed Guardian: De Leon Hernandez, Daykla Zulema	Appointment of Guardian for Person of the Minor Petition for Special Immigrant Juvenile Findings



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Tentative Ruling:

APPEARANCE ORDERED (Zoom not allowed)

The court afforded petitioner an opportunity to supplement his request for the establishment of a guardianship and SIJF. The court appreciates the additional information submitted in declarations by both the proposed ward and guardian. The Court is somewhat confined by what petitioner alleges, which is a finding of neglect by both his mother and father. He states that his family lived in extreme poverty, and provides detailed facts in support thereof. Unfortunately, what he has described does not meet the definition of neglect under California law. It is defined as "willful or negligent failure of the parent or guardian to provide the child with adequate food, clothing, shelter, or medical treatment." Cal. Welf. & Inst. Code § 300(b)(1)." Nothing in his declaration or that of the proposed guardian even suggests the parents engaged in "willful or negligent failure to provide...." In spite of their own diligent efforts, the parents were simply not able to raise the family out of poverty. That is not the same as willful or negligent conduct. Neglect is the only allegation in the petition. However, based upon the declaration of the proposed guardian, there appears to be a basis on which to find abandonment on the part of the mother. Parties to appear to address how to address the inconsistency with how the matters are pled and what the evidence actually shows.

26-PRO-00496	In The Matter of the Joseph And Johanna Kapka Family Trust, Dated August 31, 2005, as amended and restated	FIRST ACCOUNT AND REPORT OF TRUSTEE AND PETITION FOR (1) SETTLEMENT OF ACCOUNT; (2) RATIFICATION OF ACTS OF TRUSTEE; (3) APPROVAL OF TRUSTEE COMPENSATION; (4) APPROVAL OF ATTORNEYS' FEES; AND (5) AND AUTHORIZATION OF PRELIMINARY DISTRIBUTION
Line 11	Petitioner: Scott, Anita (LEYDIKER, STEVEN S.) Decedent: KAPKA, JOHANNA Decedent: KAPKA, JOSEPH	Petition Hearing